

Justice Behind the Veil: Rawls and the Original Position

An original lesson plan inspired by **Samuel Freeman's** the Stanford Encyclopedia of Philosophy entry on John Rawls. Not affiliated with or endorsed by Stanford Encyclopedia of Philosophy or Samuel Freeman. Explore the original course: <https://plato.stanford.edu/entries/rawls/>

GRADE LEVEL

Grades 11-12 / Intro College

DURATION

65 minutes

TOPICS

Political Philosophy

“If you had to design the basic rules of society without knowing what position — rich or poor, talented or not, majority or minority — you yourself would occupy in it, what principles of justice would you choose?”

Learning Objectives

By the end of this lesson, students will be able to:

- Explain Rawls's device of the original position and veil of ignorance, and why he thinks it produces fair principles of justice.
- State and distinguish Rawls's two principles of justice: equal basic liberties and the difference principle governing social and economic inequalities.
- Apply the difference principle to evaluate a proposed social or economic policy and compare the verdict to what straightforward utilitarian aggregation would recommend.

Materials Needed

- Whiteboard
- Printed veil-of-ignorance handout describing the original position thought experiment
- Policy case-study cards (e.g., a flat tax vs. a progressive tax paired with a strong social safety net)
- Two-column comparison worksheet: Rawls's two principles vs. straightforward utilitarian aggregation

Lesson Procedure

Hook: Design a Society, Knowing Nothing About Your Place in It

10 min

Present the veil of ignorance as a game: in pairs, students must agree on rules for a hypothetical society's wealth distribution, laws, and opportunities without knowing whether they will be born rich or poor, talented or not, part of the majority or a minority. Have pairs brainstorm the principles they would insist on and briefly share out.

Direct Instruction: The Original Position and Two Principles

18 min

Formalize the game as Rawls's 'original position,' explaining that the veil of ignorance is meant to strip away morally arbitrary features (talent, class, race) so the chosen principles are fair to everyone. Present the two principles: equal basic liberties for all, and social/economic inequalities permitted only when attached to positions open to all under fair equality of opportunity and when they benefit the least advantaged (the difference principle), with the first principle taking priority over the second.

Small-Group Case Analysis

17 min

In groups, students apply the two principles to the tax-policy case cards, determining what Rawls's difference principle would recommend and comparing that to what straightforward utilitarian aggregation of overall welfare would recommend, noting where the two approaches diverge.

Whole-Class Debate

14 min

Debate whether the risk-averse 'maximin' reasoning Rawls attributes to people behind the veil (choosing the option that makes the worst-off best off, rather than gambling for a higher average) is really how a rational person would reason, or whether it is overly cautious.

Closure

6 min

Return to the opening brainstorm and compare students' original, intuitive principles to Rawls's actual two principles, noting any overlaps or surprising differences.

Discussion Questions

- 1 Rawls assumes people behind the veil would reason in a risk-averse ('maximin') way, prioritizing the worst-off outcome. Is that really how a rational, self-interested person would reason if they didn't know their place in society, or might some gamble for a higher average?
- 2 Does the veil of ignorance actually succeed in stripping away morally arbitrary information, or does it build in assumptions, about risk-aversion or what people care about, that already favor Rawls's own conclusions?
- 3 How is Rawls's difference principle different from straightforward utilitarianism, and why does Rawls think that difference matters for justice?
- 4 Rawls gives strict priority to equal basic liberties over the difference principle. Can you imagine a case where sacrificing some liberty for a large economic gain to the worst-off would be justified? Would Rawls allow it?
- 5 Is 'fair equality of opportunity' achievable in a society with unequal families, unequal schools, and different natural talents, or is it an ideal Rawls's theory can gesture at but never fully realize?

Assessment

Students write a policy memo (400–500 words) recommending for or against a real or hypothetical redistributive policy, using Rawls's two principles of justice, with particular attention to the difference principle, as their explicit standard, and briefly noting how a straightforward utilitarian would evaluate the same policy differently.



Extension Activity

Have students design their own alternative thought experiment (other than the veil of ignorance) intended to strip away morally arbitrary bias from a group decision, and write a short explanation of what bias their device targets and how it works.

Free to use, adapt, and share for educational purposes with attribution to Philosophy Commons. This lesson plan is an original work created by Philosophy Commons; it is inspired by, but is not a reproduction of, the credited course's actual materials.